

23AHCV00216 23AHCV00216

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Case Number: 23AHCV00216 Hearing Date: June 26, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION FOR ATTORNEY'S FEES

I. INTRODUCTION

This matter arises from the partition of commercial real property located at 1609 S. California Avenue in Monrovia, California. Plaintiff Douglas A. Knight ("Plaintiff") filed this action on January 31, 2023, seeking partition of the Property owned jointly by Plaintiff and Defendants Robert A. Rose, Sr., Robert A. Rose, Jr., and Michael P. Rose. ("Defendants") The parties disputed issues concerning management of the Property, rental income, and the distribution of sale proceeds. Following the entry of an interlocutory judgment of partition by sale, the Property was sold through a court-appointed partition referee. The matter thereafter proceeded through additional litigation concerning the allocation of the sale proceeds and ultimately resolved by way of an in-court settlement on May 12, 2026, at the start of an evidentiary hearing on distribution of assets.

On June 1, 2026, Plaintiff filed the instant motion seeking attorney's fees and costs pursuant to Code of Civil Procedure sections 874.010 and 874.040. On June 12, 2026, Defendants filed an opposition, and on June 18, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

In partition actions, generally an award of costs and fees should be proportionally divided based on the parties' ownership interest in the property, balanced with other equitable considerations. (Finney v.

Gomez (2003) 111 Cal.App.4th 527, 545-546.) By statute, the court shall apportion the costs of partition among the parties in proportion to their interests or make such other apportionment as may be equitable. (CCP § 874.040; see also Orien v. Lutz (2017) 16 Cal.App.5th 957 [fees incurred by a defendant to a partition action can be for the common benefit, and therefore allocable in part to the plaintiff, despite the fact that the defendant resists the partition].)

CCP section 874.010 provides that the costs of partition include:

- (a) Reasonable attorney's fees incurred or paid by a party for the common benefit.
- (b) The fee and expenses of the referee.
- (c) The compensation provided by contract for services of a surveyor or other person employed by the referee in the action.
- (d) The reasonable costs of a title report procured pursuant to Section 872.220 with interest thereon at the legal rate from the time of payment or, if paid before commencement of the action, from the time of commencement of the action.
- (e) Other disbursements or expenses determined by the court to have been incurred or paid for the common benefit.

III. ANALYSIS

This matter arises from the partition of the commercial real property located at 1609 S. California Avenue, Monrovia, California. Plaintiff Douglas A. Knight and Vicki Knight held a 50% undivided interest in the Property, and Defendants held the remaining 50% interest. The Property was sold through the partition process, and escrow closed on or about November 7, 2025. (Motion, p. 5.) The parties entered into a settlement on May 12, 2026, confirming an equal 50/50 distribution of the property sale proceeds. (Motion, pp. 6-7.)

Plaintiff now moves for attorney's fees and costs incurred during the partition process. Plaintiff seeks \$26,320.00 in attorney's fees and \$4,556.65 in costs, for a total request of \$30,876.65, and asks that one-half of that amount, \$15,438.33, be allocated against Defendants' share of the sale proceeds.

(Motion, pp. 2.) Plaintiff contends the fees were incurred in obtaining the interlocutory judgment of partition, facilitating the sale of the Property, litigating issues concerning distribution of the proceeds, preparing for trial, and bringing the matter to final resolution. (Motion, pp. 5-7; Green Decl., ¶ 6.) Plaintiff further asserts that all fees and costs sought were incurred for the common benefit of the parties and that unrelated companion matters were excluded from the request. (Motion, pp. 7, 10.)

In support, Plaintiff submits the declaration of attorney Noah Green, who describes the litigation history, counsel's hourly rates, the categories of work performed, and the total fees and costs incurred. (Green Decl., ¶¶ 3-12.) Plaintiff also submits Exhibit A, consisting of itemized chronological ledger entries for the claimed attorney's fees and costs.

In opposition, Defendants argue that the requested fees are excessive because "practically nothing" Plaintiff's counsel did produced the result ultimately obtained a 50/50 division of the sale proceeds. (Opposition, p. 2.) Defendants contend that much of Plaintiff's counsel's work related to efforts to obtain an accounting and disputes over the distribution of proceeds rather than advancing the partition itself. (Id.) Relying on *Regalado v. Regalado*, *Finney v. Gomez*, and *Orien v. Lutz*, Defendants argue that services relating to accounting disputes and other issues that did not benefit all cotenants are not recoverable as costs of partition. (Opposition, pp. 2-3.) Defendants further contend that Plaintiff over-litigated what was ultimately a simple issue—how to divide the sale proceeds—and therefore request that the Court substantially reduce the fee award. (Opposition, pp. 2-3.)

The Court is not persuaded by Defendants' contention that the requested fees should be reduced. Although Defendants argue that Plaintiff over-litigated the matter and that much of counsel's work did not contribute to the ultimate result, Defendants do not identify specific billing entries that are allegedly excessive, duplicative, or unrelated to the partition, nor do they provide any meaningful analysis of the itemized ledger submitted in support of the motion. While defense counsel's declaration generally criticizes the fees sought, the opposition itself does not meaningfully challenge any particular time entry or category of work. When asserting that attorney hours are excessive, the burden rests with the opposing party to identify the specific billing entries challenged and articulate why they are improper, supported by argument and citations to the record. (*Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assn.* (2008) 163 Cal.App.4th 550, 564.) General assertions that

fees are excessive, duplicative, or unnecessary are insufficient. (Ibid.)

The Court has reviewed the Green Declaration and accompanying ledger and finds the requested fees and costs adequately supported. The record reflects that Plaintiff successfully prosecuted the partition action through entry of an interlocutory judgment of partition by sale, the sale of the Property, and the ultimate distribution of proceeds. (Green Decl., ¶¶ 5-7, 11; Exh. A.) These efforts conferred a common benefit on all co-owners and are recoverable under Code of Civil Procedure sections 874.010 and 874.040.

Based on the foregoing, the Court GRANTS Plaintiffs' motion for attorney's fees. The Court finds that the requested attorney's fees of \$26,320.00 and costs of \$4,556.65 were reasonably incurred for the common benefit of the parties within the meaning of Code of Civil Procedure section 874.010. The Court awards Plaintiff a total of \$30,876.65 in attorney's fees and costs and orders that one-half of that amount, \$15,438.33, be allocated against Defendants' share of the sale proceeds.

IV. CONCLUSION AND ORDER

The Court

GRANTS Plaintiffs motion for attorney's fees and awards \$30,876.65 in attorney's fees, to which \$15,438.33, be allocated against

Defendants' share of the sale proceeds and disbursed to Plaintiff.

Plaintiff

is to give notice.

Dated: June 26, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT